

Dev Singh v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 14 January 2020 · Writ-C No. 1137 of 2020 · Writ-C No. 1137 of 2020 · **Writ disposed; petitioner to file objections before the Executive Engineer for a speaking order; s.127 appeal if aggrieved; coercive action stayed for a limited period.**

HEADNOTE

A consumer's writ to quash a final assessment and recovery notice was disposed of without a merits decision. Taking a lenient view, the Division Bench directed him to appear before the Executive Engineer with objections and evidence; a speaking and reasoned final order was to follow within four weeks, with a short stay of coercive recovery. Liberty was reserved to appeal under Section 127 of the Electricity Act, 2003 if aggrieved by that order.

FACTUAL SUMMARY

Dev Singh, a consumer, invoked the writ jurisdiction of the Allahabad High Court to quash a final assessment dated 12 September 2019 and a recovery notice dated 9 December 2019 issued by the Executive Engineer. He also sought a mandamus to be allowed to file objections. His case was that the department was taking coercive action without a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department appeared. The Court did not try the assessment on the merits.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking order on objections; relegation to s.127 appeal

HOLDING

Without deciding the validity of the 12.9.2019 final assessment or the 09.12.2019 notice, the Court directed the consumer to appear before the Executive Engineer on 31.1.2020 with objections and evidence; the Engineer shall pass a speaking and reasoned final order within four weeks. Coercive action is stayed for seven weeks or until disposal of the objection, whichever is earlier. If the consumer is aggrieved by that final order, an appeal under Section 127 of the Electricity Act, 2003 lies in accordance with law. Default in appearance revives the recovery citation. The writ petition was disposed of. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking order on the consumer's objections, the Court left any further challenge to the statutory appeal under Section 127 rather than examining the assessment in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE FINAL ASSESSMENT DATED 12.9.2019 AND NOTICE DATED 09.12.2019

The Court did not examine whether the assessment or recovery notice complied with the Supply Code or whether a hearing had been given. ¶ 1

NOT DECIDED — COMPLIANCE WITH U.P. ELECTRICITY SUPPLY CODE, 2005

The petitioner alleged non-compliance; the Court issued process directions without construing any Code clause. ¶ 1